

24CV00261 Crystal Hernandez et al vs Alan Moelleken et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-06-12

Motion: CMC; Motion Approval

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Tentative Ruling: Crystal Hernandez et al vs Alan Moelleken et al

Case Number

24CV00261

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 06/12/2026 - 10:00

Nature of Proceedings

CMC; Motion Approval

Tentative Ruling

Crystal Hernandez v. Alan Moelleken, et al.

Case No. 24CV00261

Hearing Date: June 12, 2026

HEARING: Motion of Plaintiff Crystal Hernandez for Preliminary Approval of Class Action Settlement and PAGA Settlement

ATTORNEYS: For Plaintiff Crystal Hernandez: Jonathan P. LaCour, Lisa Noveck, Jameson Evans, Amanda M. Thompson

For Defendants Carrillo Surgery Center, Inc., Central Valley Surgery Center, Inc., OSF Medical Group of California, Inc., California Medical and Surgical Management Group, Inc., and Alan Moelleken: Jeffrey A. Dinkin, Jared W. Speier, Lindsay L. Bowden, Stradling Yocca Carlson & Rauth LLP

TENTATIVE RULING: For all reasons stated herein, the motion of plaintiff Crystal Hernandez for preliminary approval of class action settlement and PAGA settlement is ordered off-calendar. Plaintiff may file a new motion supported by a full set of new supporting papers if a revised settlement is executed by the parties.

Background:

On January 18, 2024, plaintiff Crystal Hernandez (Plaintiff) filed this action (Individual/PAGA Case) against defendants Carrillo Surgery Center, Inc., Central Valley Surgery Center, Inc., OSF Medical Group of California, Inc., California Medical and Surgical Management Group, Inc., and Alan Moelleken (collectively, Defendants). The complaint sets forth 13 causes of action (COAs) for: (1) failure to pay minimum wages in violation of Labor Code sections 1194, 1194.2, and 1197, and wage order No. 5; (2) failure to furnish wage and hour statements, Labor Code sections 226 and 226.3; (3) failure to maintain payroll records, Labor Code sections 1174 and 1174.5; (4) failure to provide meal and rest period compensation, Labor Code section 226.7; (5) failure to pay overtime compensation, Labor Code section 1194; (6) failure to pay wages in a timely manner, Labor Code section 204; (7) waiting time penalties, Labor Code sections 201, 202, and 203; (8) violations of the Fair Employment and Housing Act (FEHA) based on pregnancy, sex, and disability, Government Code section 12940, et seq.; (9) failure to provide reasonable accommodations in violation of Government Code section 12940 et seq.; (10) failure to engage in a good faith interactive process in violation of Government Code section 12940 et seq.; (11) FEHA violations based upon retaliation; (12) unfair competition, Business and Professions Code section 17200 et seq.; and (13) wrongful constructive termination in violation of public policy.

On March 11, 2024, Plaintiff filed a first amended complaint (FAC) which added a 14th COA for recovery of civil penalties under the Private Attorneys General Act (PAGA). As alleged in the FAC: Plaintiff is a registered nurse who worked for Defendants to provide pre-operation and post-operation care. (FAC, ¶¶ 19-22.) Defendants failed to provide uninterrupted meal breaks or required rest breaks, and never paid Plaintiff the required premium pay for missed or interrupted breaks. (FAC, ¶¶ 23-24.) Plaintiff was required to perform unpaid, off-the-clock work. (FAC, ¶ 25.) On March 24, 2023, Plaintiff informed Defendants that she was pregnant. (FAC, ¶ 26.) Defendants failed to accommodate Plaintiff's pregnancy by rejecting reasonable work restrictions and ultimately terminating Plaintiff because of her pregnancy. (FAC, ¶¶ 27-45.) On June 28, 2023, Defendants emailed Plaintiff and told her that she was no longer permitted to come into work because of Defendants' concern over patient safety. (FAC, ¶ 33.) Plaintiff was ultimately required to seek alternative employment. (FAC, ¶¶ 46-47.)

On May 29, 2025, Plaintiff filed a separate class action complaint in Santa Barbara Superior Court, case No. 24CV00261 (Class Action Case), against the same Defendants. The complaint in the Class Action Case set forth nine COAs for: (1) failure to pay minimum wages in violation of Labor Code sections 1194, 1194.2, and 1197, and wage order No. 5; (2) failure to furnish wage and hour statements, Labor Code sections 226 and 226.3; (3) failure to maintain payroll records, Labor Code sections 1174 and 1174.5; (4) failure to provide meal and rest period compensation, Labor Code section 226.7; (5) failure to pay overtime compensation, Labor Code sections 512 and 1194; (6) failure to pay wages in a timely manner, Labor Code section 204; (7) waiting time penalties, Labor Code sections 201, 202, and 203; (8) violation of Business and Professions Code section 17200, et seq.; and (9) failure to indemnify/reimburse necessary business expenditures incurred during discharge of work duties, Labor Code section 2802. The complaint in the Class Action Case asserts similar wage and hour claims to those asserted by Plaintiff in the Individual/PAGA case. The putative class is alleged to include all persons who were employed by Defendants during the relevant time period with any similar title

who were non-exempt or misclassified exempt employees subject to similar wage violations.

On July 7, 2025, the parties participated in a full-day mediation pertaining to all claims in the Individual/PAGA Case and the Class Action Case. (LaCour Decl., ¶ 10, Ex. A at ¶ 5.) All of the claims in these two actions were settled at mediation. (Ibid.) The settlement was memorialized in a memorandum of understanding dated July 7, 2025. (Ibid.) A long-form agreement was executed by the parties between July 17 and July 22, 2025 (Settlement Agreement). (LaCour Decl., Ex. A at pp. 38-39.)

On July 25, 2025, pursuant to the parties' stipulation, the court consolidated the Individual/PAGA Case and the Class Action Case for all purposes.

On November 12, 2025, Plaintiff filed a motion for preliminary approval of the Settlement Agreement.

On April 17, 2026, the court noted various substantive issues with the proposed settlement and continued Plaintiff's motion to this hearing of June 12.

On May 26, 2026, Plaintiff filed a brief in response to the issues raised in the court's April 17 minute order.

On June 1, 2026, Plaintiff submitted a declaration from counsel describing the current status of a negotiated revised settlement.

Analysis:

The court has reviewed Plaintiff's May 26 and June 1 filings. It appears that the parties are currently negotiating a revised settlement agreement to address the issues raised by the court and to address other issues. Given these circumstances, the court will order this motion off-calendar. If a revised settlement is finalized and executed, Plaintiff may file a new motion with new supporting papers as to the revised settlement.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

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